

Court No. - 36

Case :- WRIT - C No. - 9637 of 2011

Petitioner :- Om Prakash

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Pramod Kumar Gupta

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Ashok Bhushan,J.

Hon'ble Shyam Shankar Tiwari,J.

This writ petition does not relate to recovery.

Put up as fresh before the Bench hearing misc. matters on Monday, the 21st of February, 2011.

Order Date :- 18.2.2011

Rakesh

Chief Justice's Court

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Petitioner :- Om Prakash

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Pramod Kumar Gupta

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Hon'ble Ferdino Inacio Rebello,Chief Justice

Hon'ble Amreshwar Pratap Sahi,J.

Heard learned counsel for the petitioner and Sri H.P. Dubey, learned counsel for the Electricity Board.

The petitioner has raised a grievance in relation to his electricity bill.

The petitioner has approached the District Consumer Forum way back on 30.10.2010 but the complaint has not been decided as yet. The prayer in this writ petition is only for a direction to the said Forum to decide his complaint.

Sri Dubey takes a preliminary objection to the maintainability of the dispute before the District Consumer Forum. He further submits that the said dispute can be raised before the Consumer Grievance Redressal Forum in view of Clause 7.10 of the U.P. Electricity Supply Code, 2005. Which is gainfully reproduced herein below:

"7.10. Consumer Grievance Redressal Forum and Ombudsman:

(i) The Licensee shall set up Consumer Grievance Redressal Forum in accordance with the UPERC (Consumer Grievance Redressal Forum and Ombudsman) Regulations, 2003, as amended from time to time. The name/addresses and contact telephone numbers of the forum shall be mentioned in the electricity bill and also displayed in the web site of the licensee/Forum.

(ii) Any consumer aggrieved by any action of the Licensee, in respect of the matters mentioned in clauses 7.7.1 to 7.7.5 or those covered under the said Regulations may file a complaint with the Licensee.

(iii) If the Licensee fails to settle the complaint of the consumer within the time limits specified in this Code or otherwise provided in the said Regulations, or the consumer is not satisfied by the decision of the licensee, the consumer may file a complaint in the Consumer Grievance Redressal Forum as per the specified procedure under the said Regulations.

(iv) Any consumer, aggrieved by non-redressal of his grievances by the Consumer Grievance Redressal Forum, may make a representation for the

redressal of his grievance to an Ombudsman as designed/appointed by the Commission in accordance with the procedure specified in UPERC (Consumer Grievance Redressal Forum and Ombudsman) Regulations, 2003."

Sri Dubey submits that the petitioner can approach the said Forum for the redressal of his grievances.

Learned counsel for the petitioner prays that he may be permitted to withdraw the petition in order to enable him to approach the Consumer Grievance Redressal Forum as provided under Clause 7.10 of the U.P. Electricity Supply Code, 2005.

The prayer made on behalf of the petitioner is granted subject to the condition that the petitioner shall not press his claim before the District Consumer Forum. In case, the petitioner approaches under the aforesaid clause before the appropriate authority within 15 days from today, the same shall be attempted to and orders shall be passed as expeditiously as possible but not later than 8 weeks from the date of presentation of a certified copy of this order before the said authority.

The writ petition is disposed of subject to the aforesaid observations.

(A.P. Sahi, J.) (F.I. Rebello, C.J.)

Order Date :- 21.2.2011

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